Date: October 9, 2014

Program ID : PRG-1010464

Program Name: ELEVATION BURGER

Operator:
ELEVATION FRANCHISE VENTURES
4100 N FAIRFAX DR
ARLINGTON VA 22203-1623

Distributor:
CHENEY BROTHERS-OCALA
2801 W SILVER SPRINGS BLVD
OCALA FL 34475-5655

Effective Dates: January 1, 2014 through December 31, 2014
Print Date: October 23, 2014

Price Type: Rebate

CHENEY BROTHERS-OCALA,

We are pleased to confirm pricing information for orders requested for delivery between January 1, 2014 and December 31, 2014 for the above named operator only. During this time period, product sold to CHENEY BROTHERS-OCALA for delivery to ELEVATION FRANCHISE VENTURES will receive the rebate type price to CHENEY BROTHERS-OCALA the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Laurie Wingfield

Kraft Representative

Date: October 9, 2014
PRG-1010464 - Rebate

SCC#	Product Description	UOM	Rebate Pays To: Distributor
00210000114800	60/1.5Z SIG BALSAMIC VING PC	CS	$1.25
00210000114900	60/1.5Z SIG CRMY CAESAR DR PC	CS	$1.25
00210000115100	60/1.5Z KR CATALINA DR	CS	$1.25
00210000115200	60/1.5Z KR HNY MUSTARD DR	CS	$1.25
00210000115400	60/1.5Z KR LDR RANCH DRESSING	CS	$1.25
00210006464500	KR FREE 4/1GA FF 1000 ISLAND	CS	$4.00
00210006711200	KR 60/1.5Z CREAMY FRENCH	CS	$1.25
00210006711800	KR 60/1.5Z 1000 ISLAND	CS	$1.25
00210006711900	KR 60/1.5Z BLUE CHEESE	CS	$1.25
00210006712000	KR 60/1.5Z RANCH	CS	$1.25
00210006712100	KR 60/1.5Z GOLDEN ITALIAN	CS	$1.25
00210006714400	KR FREE 60/1.5Z FF RASP VING	CS	$1.25
00544000000200	A1 12/10Z STEAK SAUCE	CS	$1.00
00544000000300	A1 24/5Z STEAK SAUCE	CS	$1.00
00544000001000	A1 12/15Z STEAK SAUCE	CS	$1.00
00544000003800	GREY POUPON 6/48Z MUST DIJON	CS	$1.00
00544000005200	GREY POUPON 12/10Z SQZ DIJON	CS	$1.00
00544000005500	GREY POUPON 6/24Z MUST DIJON	CS	$1.00
00544000006800	GP 4/48Z BISTRO SAUCE	CS	$1.00
00544000006825	GP 4/48Z BISTRO SAUCE	CS	$1.00
00544000031000	GREY POUPON ROUGE 24Z/6	CS	$1.00
00544000302200	GREY POUPON 2/1 GL DIJON	CS	$1.00

RATE INFORMATION

The contract rate per item will be stated as follows:

I. Headquarter Rebate defined as a percent unit basis.

DETAILS

I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.

II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.

III. Supporting Documentation is required for all Allowance requests:

- Distributor Name with company location and Contract Number
- Kraft contract number
- Shipment dates for each sales transaction
- Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
- Kraft product code number or GTIN number
- Description of product item pack, size, item brand & UOM
- Total cases purchased
- Requested case rates per product and total rebate dollar amount per product

IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.

V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT

I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.

II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION

I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.

II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.

III. Please include the Contract ID # in all communications

IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com

OR mail paper claims to:

Kraft Foods Group – Claims Processing

P. O. Box 15887

Pittsburgh, PA 15244

V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.